

23STCV19872 23STCV19872

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 23STCV19872 Hearing Date: July 30, 2026 Dept: 11

Maravilla

et al, v. Louis Vuitton U.S. Manufacturing, Inc.

MOTION

FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Date of Hearing: July 30, 2026 c/f January 26,
2206

Department: 11 (Spring Street)

Case No.: 23STCV19872

TENTATIVE: Grant contingent on counsel

revising the releases in ¶5.2 to make it clear that Class Members are not releasing claims for PAGA penalties. Only Aggrieved Employees should release such claims. As revised, paragraph 5.2 purports to release “statutory and civil penalties” which could be interpreted to include PAGA penalties.

PRELIMINARY APPROVAL OF CLASS ACTION
SETTLEMENT

As

a “fiduciary” of the absent class members, the trial court’s duty is to have before it sufficient information to determine if the settlement is fair, adequate, and reasonable. (7-Eleven Owners for Fair Franchising v. The Southland Corp. (2000) 85 Cal.App.4th 1135, 1151 [citing Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 11,084, 1801, 1802 (“Dunk”)].)

California

Rules of Court, rule 3.769 governs settlements of class actions. Any party to a settlement agreement may submit a written notice for preliminary approval of the settlement. The settlement agreement and proposed notice to class members must be filed with the motion, and the proposed order must be lodged with the motion. (Cal. Rules of Court, rule 3.769(c).)

In

determining whether to approve a class settlement, the court's responsibility is to "prevent fraud, collusion or unfairness to the class" through settlement and dismissal of the class action because the rights of the class members, and even named plaintiffs, "may not have been given due regard by the negotiating parties." (Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America (2006) 141 Cal.App.4th 46, 60.)

FAIRNESS OF THE SETTLEMENT AGREEMENT

In

an effort to aid the Court in the determination of the fairness of the settlement, Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 244-245 ("Wershba"), discusses factors the Court should consider when testing the reasonableness of the settlement.

A

presumption of fairness exists where: (1) the settlement is reached through arm's length bargaining; (2) investigation and discovery are sufficient to allow counsel and the Court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small. (Wershba, supra at p. 245 [citing Dunk, supra at p. 1802].) The test is not the maximum amount plaintiff might have obtained at trial on the complaint but, rather, whether the settlement is reasonable under all of the circumstances. (Wershba, supra at p. 250.)

In

making this determination, the Court considers all relevant factors including "the strength of [the] plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of

counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.”

(Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 128 (“Kullar”) [citing Dunk, supra at p. 1801].)

“The

fact that a proposed settlement may only amount to a fraction of the potential recovery does not, in and of itself, mean that the proposed settlement is grossly inadequate and should be disapproved.”

(City of Detroit v. Grinnell

Corporation (2d Cir. 1974) 495 F.2d 448, 455; see also Linney v. Cellular Alaska Partnership (9th Cir. 1998) 151 F.3d 1234, 1242 [“[I]t is the very uncertainty of outcome in litigation and avoidance of wasteful and expensive litigation that induce consensual settlements. The proposed settlement is not to be judged against a hypothetical or speculative measure of what might have been achieved by the negotiators.”].)

TERMS OF SETTLEMENT AGREEMENT

"Class" means all of Defendant's current and former non-exempt employees who worked for Defendant in California at any time between August 18, 2019, and July 1, 2025. (Settlement, ¶1.5.)

"Class Period" means the time period of August 18, 2019, to July 1, 2025. (¶1.13)

"Aggrieved Employee" are all of Defendant's current and former non-exempt employees who worked for Defendant in California at any time between August 18, 2022, and July 1, 2025. (¶1.4)

"PAGA Period" means the time period of August 18, 2022, to July 1, 2025. (¶1.31)

Defendant

estimates that the total number of workweeks worked by Class Members between August 18, 2019 and the date of the mediation (February 24, 2025) does not exceed 180,824 workweeks. If the number of workweeks worked during the Class Period is more than 10% greater than this figure (i.e., if there are 198,907

workweeks or more worked during the Class Period), Defendant shall have the option to either: (i) increase the Gross Settlement Amount by the percentage in excess of the 10% threshold (i.e., if there is a 13% increase in workweeks worked during the Class Period, Defendant will increase the Gross Settlement Amount by 3%); or (ii) cut-off the end of the Class Period as of the date that the workweeks worked during the Class Period is 198,907. (¶8)

· Defense Counsel represents that based on current records which counsel reviewed and verified, the total number of workweeks worked during the Class Period is 190,173 workweeks; therefore, the Escalator Clause will not be triggered. (Declaration of Christina Tellado, ¶4.)

The Parties stipulate to class certification for settlement purposes only. (¶11.1)

The Gross Settlement Amount (“GSA”) is \$1,800,000, non-reversionary. (¶3.1)

The Net Settlement Amount (“NSA”) of \$1,050,510 is the GSA minus:

Up to \$600,000 (33.3%) for attorneys' fees (¶3.2.2);

Fee Split: 75% to Haines Law Group, APC and 25% to Robinson Di Lando, APLC. (1¶1.7)

Up to \$40,000 for attorneys' costs (¶3.2.2);

Up to \$22,500 for incentive awards to the Class Representatives (\$7,500 x 3) (¶3.2.1);

Up to \$11,990 for costs of settlement administration (¶3.2.3); and

Payment of \$75,000 (75% of \$100,000 PAGA penalty) to the LWDA (¶3.2.5).

Funding of the Settlement: Defendant shall fully fund the Gross Settlement

Amount, along with all amounts necessary to fully pay Defendant's share of payroll taxes (which will be paid separate and apart from the Gross Settlement Amount), by transmitting the funds to the Administrator no later than thirty (30) days after the Court enters a Judgment on its Order Granting Final Approval of the Settlement, assuming no objections or appeals. Should an objection or appeal be filed, Defendant will fund the Gross Settlement Amount within sixty-five (65) days after the Judgment becomes final. (§4.2)

Payments from the Gross Settlement

Amount: Within ten

(10) business days after Defendant funds the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payments. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payments shall not precede disbursement of Individual Class Payments and Individual PAGA Payments.

(§4.3)

No Claim Requirement. Class Members shall not be required to submit a claim form in order to receive an individual settlement payment. (§3.1)

Calculation of Individual Settlement Payments: The Individual Class Payment will be calculated as follows: (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period and (b) multiplying the result by the total number of Workweeks worked by such Participating Class Member. (§3.2.4) Non-Participating Class Members will not receive any Individual Class Payments. The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members pursuant to the formula in Paragraph 3.2.4. (§3.2.4.2)

· Tax Allocation: 1/3 as wages and 2/3 as interest and penalties. (§3.2.4.1)

PAGA Payments: The

Administrator will calculate each Individual PAGA Payment by (a) dividing the amount of the Aggrieved Employees' 25% share of PAGA Penalties (\$25,000.00) by the total number of PAGA Pay Periods worked by all Aggrieved Employees during

the PAGA Period and (b) multiplying the result by the total number of PAGA Pay Periods worked by the applicable Aggrieved Employee. (§13.2.5.1)

If the Court approves PAGA Penalties of less than the amount requested, the Administrator will allocate the remainder to the Net Settlement Amount. (§13.2.5.2)

· Tax Allocation: 100% penalties. (Ibid.)

"Response Deadline" means sixty (60)

calendar days after the Administrator mails Notice to Class Members and Aggrieved Employees, and shall be the last date on which Class Members may: (a) fax, email, or mail Requests for Exclusion from the Settlement, or (b) fax, email, or mail their Objection to the Settlement. Class Members to whom Notice Packets are resent after having been returned undeliverable to the Administrator shall have an additional fourteen (14) calendar days beyond the Response Deadline has expired. (§11.42) The same deadlines apply to workweek/payment challenges. (§17.6)

Uncashed Checks: The Administrator will cancel all checks not

cashed by the void date (not less than 180 days after the date of mailing). (§14.3.1) For any Class Member whose Individual Class

Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to Legal Aid Foundation of Los Angeles ("Cy Pres Recipient"), a 501(c)(3) nonprofit, to help provide legal aid services to the indigent population of Los Angeles. After the void date, the Parties will submit a declaration from the Administrator attesting to the total amount that was actually paid to the class members along with any interest that has accrued thereon. The Parties will concurrently submit an amended Judgment to direct the Administrator to disburse these amounts to the Cy Pres Recipient in compliance with California Code of Civil Procedure § 384(b). The Parties, Class Counsel, and Defense Counsel represent that they have no interest or relationship, financial or otherwise, with the intended Cy Pres Recipient. (§14.3.3)

The Parties agree to use Apex

Class Action Administration as the Settlement Administrator. (§11.2)

The proposed Settlement Agreement

was submitted to the LWDA on August 7, 2025. (Declaration of Andrew J. Rowbotham ("Rowbotham Decl."), ¶45 and Exhibit 3 thereto.)

The Amended Settlement Agreement

was submitted to the LWDA on May 29, 2026. (Supplemental Declaration of Andrew J. Rowbotham ("Rowbotham Supp. Decl."), ¶8 and Exhibit 4 thereto.)

All class members who do not opt out will release certain claims, discussed in detail below.

ANALYSIS OF SETTLEMENT AGREEMENT

A. Does a Presumption of Fairness Exist?

1. Was

the Settlement reached through arm's-length bargaining? Yes. On February 24, 2025, the Parties participated in a full day mediation presided over by Steven J. Rottman, Esq., which led to this Agreement to settle the Action. (Rowbotham Decl., ¶15.)

2. Were investigation and discovery

sufficient to allow counsel and the Court to act intelligently? Yes. Counsel represents that the prior to mediation, Defendant provided Plaintiffs with a sampling of timekeeping and payroll records for non-exempt employees who worked in California during the Class Period, as well as the relevant employee handbook. (Ibid.) Counsel's expert (Chief Analyst of AttorneyTalk, a consulting firm specializing in statistical analysis, data processing, and damages modeling in employment litigation, including wage-and-hour class actions and representative actions brought under the California Labor Code and the Private Attorneys General Act ("PAGA")) represents that the sampling of records was statistically significant. (Declaration of Lawrence W. Beall, passim.)

3.

Is counsel experienced in similar litigation? Yes. Class Counsel is experienced in complex litigation, including wage and hour class action cases. (Rowbotham Decl., ¶¶ 2-8; Declaration of Paul K. Haines ("Haines Decl."), ¶¶ 2-11; Declaration of Fletcher W. Schmidt ("Schmidt Decl."), ¶¶ 2-9; Declaration of Susan J. Perez ("Perez Decl."), ¶¶ 2-6; and Declaration of Michael C. Robinson ("Robinson Decl."), ¶¶ 3-6.)

4. What percentage of class has

objected? This cannot be determined until the fairness hearing. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2011) ¶ 14:139.18 ["Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing."].)

B. Is the settlement fair, adequate and reasonable?

1. Strength
of Plaintiffs' case. "The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement." (Kullar at 130.)

Class Counsel have provided the following exposure analysis:

Violation

Maximum Exposure

Discounted Exposure

Unpaid Wages

\$621,504.00

\$23,306

Meal Periods

\$12,781,413

\$191,721

Rest Periods

\$18,607,915

\$21,084,119

Wage Statement Violations

\$2,628,000

\$98,550

Waiting Time Penalties

\$2,027,837

\$76,044

PAGA

\$3,719,500

\$1,487,800

Total

\$40,386,169.00

\$2,156,540

(Rowbotham Decl., ¶¶30-43.)

2. Risk, expense, complexity and likely duration of further litigation.

Further litigation carries the possibility of non-certification and unfavorable rulings on the merits of the above legal issues.

3.

Risk of maintaining class action status through trial. It would have been Plaintiffs' burden to maintain the class action status through trial.

4. Amount offered in settlement. Based on the calculations above, the Settlement amount of \$1,800,000 therefore represents approximately 4% of the maximum forecasted recovery and 83% of the discounted forecasted recovery in this matter. These percentages are within the "ballpark of reasonableness."

5. Extent of discovery completed and the stage of the proceedings. As stated above, it appears that

Plaintiffs have completed sufficient discovery in order to make an informed decision.

6. Experience

and views of counsel. As indicated above, Class Counsel is experienced in class actions, including wage and hour class action cases. Class Counsel is of the opinion that the settlement is fair, reasonable, and adequate and is in the best interest of the Class in light of all known facts and circumstances.

7. Presence of a governmental participant.

This factor is not applicable.

8. Reaction of the class members to

the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object or opt-out. This factor becomes relevant during the fairness hearing.

SCOPE OF RELEASE

As

of the Effective Date, Plaintiff, Participating Class Members and Aggrieved Employees hereby fully and forever release and discharge all claims against all Released Parties as follows: (§15)

Upon

the Effective Date, Plaintiffs and all Participating Class Members who do not validly and timely request to be excluded from the Class, attorneys, successors, assigns, legatees, heirs, and personal representatives release the Released Parties from all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the operative pleadings in the Actions, including but not limited to claims for rest periods; meal periods; minimum wages; overtime wages; pay for all hours worked, including but not limited to alleged off-the-clock work; calculation of the regular rate and/or overtime/double time pay, including alleged non-inclusion of all forms of compensation required to be included in such calculation; timeliness of wages; payment of wages at separation of employment; waiting time penalties; itemized wage statements and/or accuracy of wage statements; recordkeeping; written commission agreements; unfair competition; any unpaid wages or compensation related to any or all of the foregoing; any premium payments related to any or

all of the foregoing; restitution for any or all of the foregoing; any penalties, including statutory and civil penalties, related to any or all of the foregoing; attorneys' fees or costs related to any or all of the foregoing; interest related to any or all of the foregoing; and/or any other damages or amounts related to any or all of the foregoing. The release includes, but is not limited to, claims pursuant to California Labor Code sections 201-204, 226 et seq., 226.7, 510, 512, 516, 558, 1182.12, 1194, 1194.2, 1197, 1198, 2802, 2804, Business and Professions Code § 17200 et seq, the applicable California Industrial Welfare Commission Wage Order(s), the California Business & Professions Code, California Code of Civil Procedure section 1021.5, and the Fair Labor Standards Act. The time period covered by this release mirrors the Class Period. This release will become effective as to all the Participating Class Members, including the absent Participating Class Members, on the Effective Date, as defined in Paragraph 1.19 of this Agreement. The Effective Date will not occur until all of the following have occurred: (a) the Court enters a Judgment on its Order Granting Final Approval of the Settlement; (b) the Judgment is final; and (c) Defendant deposits the entire Gross Settlement Amount with the Administrator. (¶15.2)

Upon the Effective Date, Plaintiffs and all Aggrieved Employees shall on behalf of themselves and on behalf of the LWDA waive, release, and forever discharge the Released Parties from any kind of claim or action for civil penalties under PAGA (the California Private Attorneys General Act, Labor Code section 2698, et seq.) during the PAGA Period, based on or arising out of the factual allegations of the operative pleadings in the Actions and letter(s) sent by Plaintiffs to the LWDA including, but not limited to, civil penalties predicated on alleged violations for: unpaid hours worked/minimum wage; unpaid overtime; unpaid paid sick leave; failure to provide meal periods and/or pay meal period premiums; failure to provide rest periods and/or pay rest period premiums; untimely payment of wages during employment; untimely payment of wages upon separation of employment; non-compliant wage statements; failure to provide employee records; failure to maintain accurate records; failure to provide written commission agreements; any unpaid wages or compensation related to any or all of the foregoing; any premium payments related to any or all of the foregoing; and attorneys' fees or costs related to any or all of the foregoing. This release also includes, but is not limited to, any and all claims under California Labor Code sections 201-204, 226 et seq., 226.7, 510, 512, 516, 558, 1182.12, 1194, 1194.2, 1197, 1198, 2802, 2804, 2698 et seq., 2699, 2699.3, and 2699.5. Business and Professions Code § 17200 et seq, and the applicable California Industrial Welfare

Commission Wage Order(s). This release will become effective as to all the Aggrieved Employees on the Effective Date, as defined in Paragraph 1.19 of this Agreement. The Effective Date will not occur until all of the following have occurred: (a) the Court enters a Judgment on its Order Granting Final Approval of the Settlement; (b) the Judgment is final; and (c) Defendant deposits the entire Gross Settlement Amount with the Administrator. (§15.3)

Named

Plaintiffs additionally provide general releases and §1542 waivers as to Defendants. (§15.1)

The

release of claims by class members is acceptable as it is limited to claims that were or could have been alleged based on the facts alleged, and which arose during the relevant period.

CONDITIONAL CLASS CERTIFICATION

A. Standards

A

detailed analysis of the elements required for class certification is not required, but it is advisable to review each element when a class is being conditionally certified. (*Amchem Products, Inc. v. Winsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a different standard to determine the propriety of a settlement class as opposed to a litigation class certification.

Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk* at 1807, fn. 19.)

Because a settlement eliminates the need for a trial, when considering whether to certify a settlement class, the court is not faced with the case management issues present in certification of a litigation class. (*Global Minerals & Metals Corp. v. Superior Court* (2003) 113 Cal.App.4th 836, 859.) Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba*, *supra* at p. 240.)

B. Analysis

1. Numerosity. This action involves a class of approximately 1,084 members. (Rowbotham Decl., ¶26.)

2. Ascertainability.

This class definition “is precise, objective and presently ascertainable.” (Sevidal v. Target Corp. (2010) 189 Cal.App.4th 905, 919.) Class Members are identifiable from Defendant’s records. (Rowbotham Decl., ¶26.)

3. Community of interest. “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

Counsel contends that commonality is met here because Plaintiffs’ claims are predicated on Defendant’s uniform company policies, primarily concerning its timekeeping and meal and rest period policies and practices. (MPA, 18:23-26.)

Further, counsel contends that Plaintiffs’ claims are typical of those held by the members the proposed Settlement Class, because Plaintiffs: 1) were employed by Defendant’s during the Class Period as a non-exempt employees; 2) were subject to Defendant’s wage and hour policies at issue in this case; 3) were injured by the same challenged policies that allegedly injured the Settlement Class as a whole; and 4) were subjected to the same defenses forwarded by Defendant as to the Settlement Class. (MPA, 19:4-9.)

Finally, counsel contends that Plaintiffs are adequate representatives because, there are no conflicts between Plaintiffs and the proposed Settlement Class, and Plaintiffs are represented by competent counsel. (MPA, 19:13-20; Declaration of Plaintiff Miranda Maravilla, passim; Declaration of Plaintiff Sara Moreno, passim; Declaration of Plaintiff Betsy Castellanos, passim.)

4. Adequacy of class counsel. As indicated above, Class Counsel is experienced in class actions.

5. Superiority. Given the size of the potential individual

recovery, it would be impracticable to bring each Class Member's claim as an individual claim.

Because the elements of class certification have been met, the class may be conditionally certified at this time.

NOTICE TO CLASS

A. Standard

California

Rules of Court, rule 3.769(e) provides: "If the court grants preliminary approval, its order must include the time, date, and place of the final approval hearing; the notice to be given to the class; and any other matters deemed necessary for the proper conduct of a settlement hearing." Additionally, rule 3.769(f) states: "If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement."

B. Form of Notice

The

proposed notice is attached to the Settlement Agreement. The information provided in the proposed notices includes a summary of the litigation, the nature and terms of the settlement, the procedures for participating in, opting out of, or objecting to the settlement, and the time, date, and location of the final approval hearing. The Court finds the notice acceptable.

C. Method of Notice

Notice will be by Direct Mail. Not later than fifteen (15) business days after the Court grants Preliminary Approval of the Settlement, Defendant will deliver the Class Data to the Administrator as defined in Paragraph 1.9 of this Agreement. (¶4.1)

Using best efforts to perform as soon

as possible, and on or before thirty (30) calendar days after entry of the preliminary approval order, the Administrator will send to all Class Members identified in the Class Data, via first-class United States Postal Service ("USPS") mail, the Class Notice. Before mailing Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database. (§7.4.2)

Not later than seven (7) days after the Administrator's receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS after being re-mailed a second time. (§7.4.3)

If the Administrator, Defendant or Class Counsel is contacted by or otherwise discovers any persons who believe they should have been included in the Class Data and should have received a Class Notice, the Parties will expeditiously meet and confer in person or by telephone, and in good faith, in an effort to agree on whether to include them as Class Members. If the Parties agree, such persons will be Class Members entitled to the same rights as other Class Members, and the Administrator will send, via email or overnight delivery, a Class Notice requiring them to exercise options under this Agreement not later than fourteen (14) days after receipt of Class Notice, or the deadline dates in the Class Notice, whichever is later. (§7.4.5)

Notice of Final Judgment
will be posted on the administrator's website. (§7.8.1)

D. Cost of Notice

The settlement administration costs are estimated at \$11,990. This amount appears reasonable. However, prior to the time of the final fairness hearing, the Claims Administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the

settlement for approval by the Court.

ATTORNEY FEES AND COSTS

California

Rules of Court, rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately,

the award of attorney fees is made by the Court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc.

(2000) 82 Cal.App.4th 615, 625-626; Ketchum

III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) In common fund cases, the

Court may utilize the percentage method, cross-checked by the lodestar. (Laffitte v. Robert Half Int'l, Inc.

(2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the

contrary, "the court has an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (Garabedian v.

Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether class counsel is

entitled to \$600,000

(1/3) in attorneys' fees will be addressed at the fairness hearing

when class counsel brings a noticed motion for attorney fees. Counsel should also be prepared to justify

any costs sought (capped at \$40,000)

by detailing how such costs were incurred.

PROPOSED SCHEDULE OF SETTLEMENT PROCEEDINGS

The following schedule is proposed by the

Court:

Preliminary

Approval Hearing – TBD

Deadline

for Serving Notices to Class Members – _____,
2026 (within _____ days of preliminary approval date)

Deadline

for Objecting or Opting Out – _____, 2026 (60 days from the date the Notice Packets are
mailed to class members)

Deadline

for Class Counsel to File Motion for Final Approval of Settlement and Motion
for Attorney Fees (and respond to any objections) – _____,
2026

(16 court days prior to hearing)

Final

Fairness Hearing and Final Approval – _____, 2026